

Authority for Personal Data  
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Dutch Healthcare Authority  
Attn: Ms. G. Engwirda  
P.O. Box 3017  
3502 GA Utrecht

Date

8 July 2024

Our reference

z2024-007837

Your letter dated

29 February 2024

Contact person

070 8888 500

Your reference

0481514/1520424

Subject

Regulation on the provision of claims data by health insurers

Dear Ms. Engwirda,

In your letter dated 29 February 2024, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft for a Regulation on the provision of claims data by health insurers (hereinafter: the draft).

The AP has several comments on the draft that require adjustments to the explanation.

Main points

- The justification for the necessity of processing personal data specified by the NZa for the implementation of the law is too generic. The explanation needs to be supplemented with the frameworks and/or criteria used in determining this.
- The explanation does not address the method of assessing the necessity for further processing for other tasks of the NZa.
- In the chain of data provision from healthcare providers to health insurers to the NZa, there is a lack of a clear picture regarding the fulfillment of information obligations towards the data subjects. The explanation can be utilized for this purpose.

Scope of the draft

The regulation aims to determine which claims data, with what frequency, must be provided by health insurers – with or without the intervention of Vektis – to the NZa. Article 4 of the Regulation specifies the sectoral claims sets to be provided, and Annex 1 of the Regulation contains a complete overview of the information elements that must be provided to the NZa for each data set. The data to be received by the NZa in this context is not directly traceable. In the flow of data provision by health insurers via ZorgTTP, these data are stripped of directly traceable personal data and pseudonymized by ZorgTTP. In another data provision flow, there are no directly traceable data, making provision via ZorgTTP and pseudonymization unnecessary. The explanation indicates that the NZa does receive the four digits of the client's postal code, the year of birth, and the birth quarter.

Legislative assessment

Justification of the necessity of the nature and scope of the data sets to be provided

The explanation accompanying the Regulation merely states that there is a necessity for processing

the data sets specified in the Regulation, without further substantiation. There is also no further specification of which tasks, in which specific sector(s), this necessity arises.

The AP observes that the NZa thus fails to meet its responsibility to clarify and substantiate that the specifications and concretizations included in the Regulation regarding the (legal) obligation to provide data are necessary for the implementation of the law. The explanations currently provided and references to tasks under the Healthcare Market Regulation Act (Wmg) are too generic for this purpose. The NZa thus provides insufficient insight into the (undoubtedly internally established and applied by the NZa) frameworks with criteria for determining the nature and scope of the various claims sets.

The AP concludes that the explanation must be supplemented with the main lines of the generally applied policy framework and the criteria included therein.

Provision of information regarding potential further processing by the NZa of collected personal data  
The explanation accompanying the Regulation on the provision of claims data by health insurers (but also in several other Regulations) includes a passage referring to possible further processing by the NZa of obtained personal data for the other tasks of the NZa. In general terms, it is indicated that such authority exists for the NZa, but it is not clarified whether and, if so, how the necessity of that further processing with a certain nature or scope for a specific, other task of the NZa is assessed. Such assessment and substantiation of the necessity must be provided in concrete situations of further processing.

The AP concludes that the NZa must make it clear that this is handled appropriately by outlining the main lines of criteria and procedures in the explanation for assessing the necessity of further processing for other tasks.

Designing responsibilities for informing data subjects about the processing of their personal data by the NZa.

The mandatory provision of claims data by health insurers to the NZa will often not be known to the data subjects. If this becomes known, it may lead to questions, unrest, and

Date

July 8, 2024

Our reference

z2024-007837

3/4

misunderstandings may arise. The AP notes that there is no clear picture regarding the interpretation that is given or should be given in the chain of care provider-health insurer-NZa concerning the respective responsibilities for informing the parties involved in compliance with Articles 13 and 14 of the GDPR. This explanation does not provide clarity on this matter, thus missing an important opportunity to make the data processing by the NZa for its task execution more transparent and possibly also to gain or maintain understanding and support.

The AP advises the NZa to supplement the explanation on this point.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

Date

July 8, 2024

#### Assessment Framework AP

The AP examines whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable to achieve the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the parties involved (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of the parties involved and the conformity of the draft with Article 6, paragraphs one and three, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680), and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent concerning the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and justified purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.